

"There can be no possible doubt on this point. If, however, there should still be some doubt, the Norwegian Government would rely upon the reservations made by the French Government in its Declaration of March 1st, 1949. By virtue of the principle of reciprocity, which is embodied in Article 36, paragraph 2, of the Statute of the Court and which has been clearly expressed in the Norwegian Declaration of November 16th, 1946, the Norwegian Government cannot be bound, *vis-à-vis* the French Government, by undertakings which are either broader or stricter than those given by the latter Government."

It is this second ground of the first Preliminary Objection which the Court will proceed to consider.

It will be recalled that the French Declaration accepting the compulsory jurisdiction of the Court contains the following reservation:

"This declaration does not apply to differences relating to matters which are essentially within the national jurisdiction as understood by the Government of the French Republic."

In the Preliminary Objections filed by the Norwegian Government it is stated:

"The Norwegian Government did not insert any such reservation in its own Declaration. But it has the right to rely upon the restrictions placed by France upon her own undertakings.

Convinced that the dispute which has been brought before the Court by the Application of July 6th, 1955, is within the domestic jurisdiction, the Norwegian Government considers itself fully entitled to rely on this right. Accordingly, it requests the Court to decline, on grounds that it lacks jurisdiction, the function which the French Government would have it assume."

In considering this ground of the Objection the Court notes in the first place that the present case has been brought before it on the basis of Article 36, paragraph 2, of the Statute and of the corresponding Declarations of acceptance of compulsory jurisdiction; that in the present case the jurisdiction of the Court depends upon the Declarations made by the Parties in accordance with Article 36, paragraph 2, of the Statute on condition of reciprocity; and that, since two unilateral declarations are involved, such jurisdiction is conferred upon the Court only to the extent to which the Declarations coincide in conferring it. A comparison between the two Declarations shows that the French Declaration accepts the Court's jurisdiction within narrower limits than the Norwegian Declaration; consequently, the common will of the Parties, which is the basis of the Court's jurisdiction, exists within these narrower limits indicated by the French reservation. Following in this connection the jurisprudence of the Permanent Court of International Justice (Phosphates in Morocco case, Judgment of June 14th,

1938, P.C.I.J., Series A/B, No. 74, p. 22; Electricity Company of Sofia and Bulgaria case, Judgment of April 4th, 1939, P.C.I.J., Series A/B, No. 77, p. 81) the Court has reaffirmed this method of defining the limits of its jurisdiction. Thus the judgment of the Court in the *Anglo-Iranian Oil Company* case states:

“As the Iranian Declaration is more limited in scope than the United Kingdom Declaration, it is the Iranian Declaration on which the Court must base itself.” (*I.C.J. Reports 1952*, p. 103.)

France has limited her acceptance of the compulsory jurisdiction of the Court by excluding beforehand disputes “relating to matters which are essentially within the national jurisdiction as understood by the Government of the French Republic”. In accordance with the condition of reciprocity to which acceptance of the compulsory jurisdiction is made subject in both Declarations and which is provided for in Article 36, paragraph 3, of the Statute, Norway, equally with France, is entitled to except from the compulsory jurisdiction of the Court disputes understood by Norway to be essentially within its national jurisdiction.

In its Observations and Submissions on the Preliminary Objections raised by the Norwegian Government, the French Government points to what it regards as a contradiction in the attitude of Norway:

“Between France and Norway, there exists a treaty which makes the payment of any contractual debt a question of international law. In this connection the two States cannot therefore speak of domestic jurisdiction.”

The treaty here referred to is the Second Hague Convention of 1907 respecting the limitation of the employment of force for the recovery of contract debts. The French Government invokes it principally against the first ground of the first Objection and as such it does not fall for consideration here; but the passage quoted from the Observations and Submissions purports to show also that the second ground of the first Objection is not valid since both Parties are signatories of the Second Hague Convention of 1907. This calls for but brief observations by the Court.

The purpose of the Convention in question is that indicated in its title, that is to say “the Limitation of the Employment of Force for the Recovery of Contract Debts”. The aim of this Convention is not to introduce compulsory arbitration in the limited field to which it relates. The only obligation imposed by the Convention is that an intervening Power must not have recourse to force before it has tried arbitration. The Court can find no reason why the fact that the two Parties are signatories of the Second Hague Convention of 1907 should deprive Norway of the right to invoke the reservation in the French Declaration.

The French Government also referred to the Franco-Norwegian Arbitration Convention of 1904 and to the General Act of Geneva

of September 26th, 1928, to which both France and Norway are parties, as showing that the two Governments have agreed to submit their disputes to arbitration or judicial settlement in certain circumstances which it is unnecessary here to relate.

These engagements were referred to in the Observations and Submissions of the French Government on the Preliminary Objections and subsequently and more explicitly in the oral presentations of the French Agent. Neither of these references, however, can be regarded as sufficient to justify the view that the Application of the French Government was, so far as the question of jurisdiction is concerned, based upon the Convention or the General Act. If the French Government had intended to proceed upon that basis it would expressly have so stated.

As already shown, the Application of the French Government is based clearly and precisely on the Norwegian and French Declarations under Article 36, paragraph 2, of the Statute. In these circumstances the Court would not be justified in seeking a basis for its jurisdiction different from that which the French Government itself set out in its Application and by reference to which the case has been presented by both Parties to the Court.

From one point of view it might be said that the second ground of the first Objection, namely the ground based on the reservation in the French Declaration, is merely subsidiary in character. It is true that the first ground of the first Preliminary Objection relies upon the proposition that the Court lacks jurisdiction because the dispute falls to be dealt with under the municipal law of Norway. But Norway has also relied upon the second ground of its first Preliminary Objection. Norway requests the Court "to decline, on grounds that it lacks jurisdiction, the function which the French Government would have it assume". It is clear that this request is based on both grounds, the character of the dispute and the French reservation. In the opinion of the Court, the second ground cannot be regarded as subsidiary, in the sense that Norway would invoke the French reservation only in the event of the first ground of its Objection being held to be legally unfounded. The Court's competence is challenged on both grounds and the Court is free to base its decision on the ground which in its judgment is more direct and conclusive.

Not only did the Norwegian Government invoke the French reservation, but it maintained this second ground of its first Objection throughout and at no time did it abandon it.

The Submissions in the Counter-Memorial, maintained in the Rejoinder, are formulated as follows:

"Having regard to the fact that the Norwegian Government maintains Preliminary Objections Nos. 1, 3 and 4 raised in the document submitted to the Court on April 20th, 1956, May it please